IN THE SUPREME COURT OF THE STATE OF OREGON

STOP THE DUMP COALITION, WILLAMETTE VALLEY WINERIES ASSOCIATION, RAMSEY MCPHILLIPS, and FRIENDS OF YAMHILL COUNTY,
Petitioners,
Cross-Respondents,
Petitioners on Review,

v.

YAMHILL COUNTY and RIVERBEND LANDFILL CO.,
Respondents,
Cross-Petitioners,
Respondents on Review.

Land Use Board of Appeals
2016026

A162746

S064894

REPLY BRIEF – PETITIONERS ON REVIEW

Appeal from a July 8, 2016 Final Opinion and Order of the Land Use Board of Appeals, Opinion by Bassham, Board Member

The Court of Appeals affirmed on petition and cross-petition on March 22, 2017. Before Sercombe, P.J., Flynn, J., and DeHoog, J., Opinion by Sercombe, P.J.

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Appendix A — Maps depicting movement in vegetation line of the S. Yamhill River over time from historic aerial photograph analysis, shown overlaid on 2005 aerial with table of movement rates (ft/yr) at outside bends.

TABLE OF AUTHORITIES

Cases

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Oregon Revised Statutes

ORS 215.296 ..... 1, 2, 4, 5, 6

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I. INTRODUCTION

This matter is before the Supreme Court because it raises important questions of first impression regarding the interpretation of a statute—ORS 215.296—by the Court of Appeals. In their joint response brief on the merits respondents on review Riverbend Landfill Co. ("Riverbend") and Yamhill County (the "county") attempt to skirt those questions. They mischaracterize petitioners' arguments, and then rebut arguments not contained in petitioners' brief. They claim to identify "factual disputes" and substantial evidence issues, and then rebut petitioners' ostensible position. Respondents repeatedly set up and knock down straw men, inviting a reply from petitioners. Petitioners decline to follow down that path.

Petitioners have not asked this Court to review or decide factual disputes or questions of substantial evidence. In spite of broad claims to the contrary, respondents do not present any specific instance in which petitioners have placed anything other than legal issues before this Court.

As the Court of Appeals stated, "[o]ur review of the parties' contentions in this case requires an analysis of the meaning of ORS 215.296(1)." *Stop the Dump Coalition v. Yamhill County* ("*SDC*"), 284 Or App 470, 475, ___ P3d ___ (2017), *rev allowed*, 361 Or 645 (2017). It stated:

> Thus, this case concerns whether LUBA properly interpreted and applied ORS 215.296(1) in its review of the county's findings on the impacts on accepted farm practices by an expanded landfill. * * *

Id. at 476.

The court also held that in the context of petitioners' challenge to the relevant conditions of approval adopted under ORS 215.296(2), the meaning of "significant" in ORS 215.296(1) revolves around a question of law:

> That contention requires an evaluation of the meaning of "significant" in ORS 215.296(1). We determine the legislative intent in the use of the terms "significant" and "significantly" in ORS 215.296 by examining the text, context, and legislative history of the provision together with general maxims of statutory construction. *State v. Gaines*, 346 Or 160, 171-72, 206 P3d 1042 (2009). * * *

Id. at 483-84.

The Court of Appeals interpreted and applied the statute, adopting an entirely new farm impacts test. The question before this Court is whether the Court of Appeals erred in expounding that test. While questions regarding the underlying facts and evidence will logically follow, LUBA will have to review those in the first instance, applying the law this Court enunciates.

Respondents also mischaracterize the Court of Appeals' decision, identifying only limited portions of the farm impacts test the court adopted. Resp Br 5, 24. The court also held:

> "[T]he relevant inquiry is whether the conditioned practice or cost is 'significant' because the change will significantly decrease the supply of agricultural land, the profitability of the farm, or the provision of food. Conditions that are imposed to preserve the profitability of a farm make any subsidized cost increase or required marketing insignificant as a matter of law."

SDC, 284 Or App at 486.

They also make inaccurate references to the factual record, and overstate the effect of several cases they cite.

For the reasons presented below, respondents' arguments are not well taken. This Court should reverse the judgment of the Court of Appeals and remand this case to LUBA for further proceedings in accordance with the opinion of this Court.

II. MOTION TO STRIKE

Riverbend filed a Response to Petition for Review on May 12, 2017 which did not include a cross-petition for review ("the party's contingent request for review of any question properly before the Court of Appeals in the event that the court grants the petition for review") under ORAP 9.10(1). The county filed no response to the petition for review.

Nonetheless, respondents now ask this Court to reverse that part of the Court of Appeals' decision which affirmed LUBA's remand to the county to consider cumulative impacts of the proposed nonfarm use upon individual farms. Resp Br 44-50. Having failed to raise this issue in Riverbend's response to the petition for review, respondents should not be permitted to raise it for the first time in their merits brief. That portion of respondents' brief should be stricken by the Court.

In the alternative, petitioners move the court for an order allowing this brief to be extended by 474 words beyond the 4,000 allowed under ORAP

5.05(1)(b)(i)(E), in order to accommodate this motion and petitioners' response to respondents' de facto cross-petition.

III. NATURE OF PROCEEDING AND MATERIAL FACTS

A. Material Facts

Respondents contend that Riverbend's landfill is not within a bend of the South Yamhill River. The landfill's location within a bend in the river is clearly depicted in submittals from one of Riverbend's consultants at pages 465-66 of the county's record transmittal to LUBA in *Stop the Dump Coalition v. Yamhill County* ("*SDC-1*"), 72 Or LUBA 341 (2015). Copies of those pages are attached as Appendix A, with the "Project Site" clearly labeled by said consultants.

IV. RESPONDENTS' ARGUMENT

A. Discussion of Applicable Law

Respondents are incorrect in stating that the only issue in this case is the correct "application" of ORS 215.296. The threshold issue is the interpretation of the language of that statute.

1. The Purpose of ORS 215.296(1)

Petitioners nowhere suggest that ORS 215.296(1) establishes a "no impacts" test. Petitioners' arguments recognize and flow from petitioners' recognition that the test is one of significant impacts.

Respondents misstate the county's obligations under the statute. The county must do more than describe farm practices on surrounding lands, and

identify the impacts of the proposed nonfarm use upon those practices and the costs of engaging in those practices. The county must address all relevant evidence placed in the record before making findings and entering an order approving the nonfarm use. The county must be able to determine that the applicant has met its burden of proving compliance with the farm impacts test —the insignificance of (1) forced changes in accepted farm practices, and (2) increases in the cost of those practices.

Respondents contend that the keys to satisfying the requirements of ORS 215.296 are procedural and evidentiary. They argue that the significance of impacts under ORS 215.296(1) is a purely factual rather than a legal issue. Respondents are wrong. The application of ORS 215.296(1) and (2) requires a proper interpretation and understanding of the meaning of the statute before one can correctly evaluate the identified impacts. *SDC*, 284 Or App at 483-84.

At page 11 and later at page 32 of their brief, respondents overstate the effect of LUBA's holding in *Dierking v. Clackamas County*, 38 Or LUBA 106, 120-21, *aff'd* 170 Or App 683, 13 P3d 318 (2000). While LUBA recognized that the county was "not required under ORS 215.296(1) to anticipate and consider the accepted farming practices that might be associated with every possible farm use to which surrounding lands may be put in the future," it also held:

> In applying ORS 215.296(1), it is entirely appropriate for the applicant and county to begin by visually surveying surrounding

> lands to identify the farm and forest uses to which those lands are devoted. Based on that survey, it is also appropriate to identify the accepted farming practices that are associated with the observed farm and forest uses.

V. CONCLUSION

For the reasons explained here and in petitioners' merits brief, this Court should reverse the judgment of the Court of Appeals due to its misconstruction and incorrect interpretation of ORS 215.296(1) and (2). The Court should remand this case to LUBA for further proceedings consistent with its ruling.

Respectfully submitted this 5th day of October, 2017.

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CERTIFICATE OF SERVICE AND FILING and Certificate of Word Count

I hereby certify that on the date indicated below, I caused to be filed the attached REPLY BRIEF – PETITIONERS ON REVIEW with the State Court Administrator, Supreme Court Building, 1163 State Street, Salem, OR 97301-2563, by e-filing. On the same date, I caused to be served on the following parties or attorneys:

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I further certify that REPLY BRIEF – PETITIONERS ON REVIEW complies with the word count limitation in ORAP 5.05(1)(b)(i)(E) for a reply brief in the Supreme Court; it is proportionately typed, not smaller than 14-point font for the body and footnotes, and contains 3,998 words. DATED this 5th day of October, 2017.

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